

25NWCV03619 25NWCV03619

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 25NWCV03619 Hearing Date: September 17, 2026 Dept: R

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LOPEZ v. CHEDRAUI USA, INC., et al.

CASE

NO.: 25NWCV03619

HEARING:

Thursday, September 17, 2026, at 9:30 AM

I.

Defendant Maria Lopez's Motion to Compel Further Responses to Form Interrogatories Set One and Special Interrogatories Set One, is GRANTED.

II.

Defendant Maria Lopez's Motion to Compel Further Responses to Requests for Admission, Set One, is GRANTED.

III.

Defendant's request for sanctions is GRANTED in the reduced amount of \$1,120 total.

Moving

Party to give notice.

Background

This is a slip and fall case. On October 10, 2025, Plaintiff Maria Amelia Lopez ("Plaintiff") filed her complaint for negligence and premises liability against Defendant Chedraui USA, Inc, dba El Super and DOES 1 through 50, inclusive.

Defendant moves to Compel Plaintiff's Further Responses to (1) Form Interrogatories, Set One, and Special Interrogatories, Set One; (2) Requests for Admission, Set One.

Both motions are unopposed.

Discussion

Meet
and Confer

A motion to compel further responses shall be accompanied by a meet and confer declaration. (C.C.P. §§ 2030.300(b).) Plaintiff's counsel has not responded to any of Defendant's counsel's attempts to meet and confer. Here, Defendant's counsel has satisfied the meet and confer requirement. (Derflinger Decl., ¶¶ 5-8.)

Requests
for Admissions

Code of Civil Procedure § 2033.290 provides that "[o]n receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.

Unless notice of a motion to compel further responses is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (C.C.P. §§ 2030.300(c).)

Under California law, the objecting party has the burden of justifying its objections when the propounding party requests that the Court order further responses. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) Further, under C.C.P. Section 2023.010, it is a misuse of discovery to make unmerited objections. (C.C.P. § 2023.010(e).)

As Defendant timely filed these motions to compel further, the responding party has the burden to justify its objections to these requests. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) The motions are unopposed and therefore the responding party has failed to meet its burden. The motion to compel further are GRANTED.

Motion
to Compel Further Responses to Form and Special Interrogatories

Where a demanding party determines that a responding party's responses to interrogatories are evasive or incomplete, or that said responses state objections that are too general or without merit, the demanding party may file a motion to compel the responding party's further response. Code Civ. Proc., § 2030.300 (a).

As Defendant timely filed these motions to compel further, the responding party has the burden to justify its objections to these requests. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) The motions are unopposed and therefore the responding party has failed to meet its burden. The motions to compel further are GRANTED.

SANCTIONS

Defendant requests \$3,535 in monetary sanctions for each motion to compel further responses. Defendant's counsel states he spent 13.9 hours at \$250 an hour on these motions, including anticipated time in reviewing oppositions and preparing replies. However, these motions are unopposed. The Court therefore grants the moving party 2 hours per motion for a total of 4 hours at \$250 an hour, for a total of \$1000. Defendant also seeks \$60 per motion for the filing fee. This request is granted. The Court grants Defendant's request for monetary

sanctions in the total amount of \$1,120.